



promotion and short clips; clarify whether the episode may be monetised; and provide contact details for both sides.

Use this workflow:

- **Step 1:** Send the release with the invitation or booking confirmation, not five minutes before recording.
- **Step 2:** Explain in ordinary language where the episode may appear—podcast apps, YouTube, social platforms, newsletters or other promotional channels.
- **Step 3:** Identify any sensitive areas that are off-limits before the interview.
- **Step 4:** Get written acceptance or a signed release and store it with the episode files.
- **Step 5:** At the start of the recording, confirm the guest knows the session is being recorded.
- **Step 6:** If the intended use changes substantially later, seek fresh permission rather than assuming the original consent covers everything.

Declaring who owns your podcast

“Who owns the podcast?” can actually mean several things: the script, music, artwork, raw interview recordings, edited sound recording, video, logo and show name may involve different rights.

Under the Copyright Act, the author is ordinarily the first owner of copyright, subject to important exceptions, including certain works created during employment. The Act also defines the “producer” of a sound recording as the person who takes the initiative and responsibility for making it. Copyright assignments must be in writing and signed, and the Act requires an assignment to identify the work and specify matters including the rights assigned, duration and territorial extent.

Answer ownership questions before they become emotional ones.

Create a short founder or collaborator agreement covering ownership of the show, ownership of raw files, revenue shares, expenses, passwords, approval rights, credit, use of clips, departure of a team member, and what happens if the show stops.

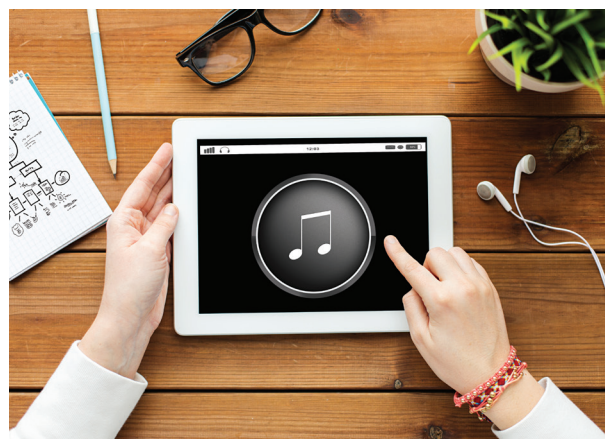
For freelancers, put the deliverable and rights in writing. Paying an editor or designer does not mean you should assume every possible right has transferred automatically.

Treat music as licensed material, not decoration

The easiest copyright problem to create is also one of the easiest to avoid: using a favourite song as intro music.

Indian copyright law protects musical works and sound recordings as separate categories, and copyright in a sound recording does not erase separate copyright in the underlying work. That means a commercial song can involve multiple rights holders.

Do not rely on internet folklore such as “under ten seconds is safe”, “thirty seconds is fair use”, or “crediting the artist makes it legal”. Indian law contains specific fair-dealing exceptions, including for criticism or review and reporting current events, but it does not create a universal podcast rule allowing an arbitrary number of seconds.



For theme music and background beds, use one of four routes: commission original music under a written agreement; license a track directly from the rights holder; use a reputable production-music library whose licence expressly covers podcasts and your intended platforms; or use genuinely public-domain material while checking whether a particular recording of that composition has separate protection.

Keep the invoice and licence terms in an episode-rights folder, and recheck the licence if the show later becomes commercial.

Using clips for review and reporting

Podcasts sometimes need clips from advertisements, films, broadcasts or public speeches.

Section 52 of the Copyright Act provides fair-dealing exceptions for purposes including criticism or review and reporting current events and current affairs. Related provisions also recognise fair-dealing use of excerpts from performances or broad-